

GAHC010173742025



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : CRP(IO)/311/2025

LEGAL HEIRS/REPRESENTATIVES OF TOTA MIA , MUSST. ASIA KHATUN
AND 6 ORS.

W/O LATE TOTA MIA, R/O VILL- GAGALMARI, MOUZA- JANIA, DIST-
BARPETA, ASSAM

2: MESER ALI
S/O LATE TOTA MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

3: JELEKHA BEGUM @ JELEKHA KHATUN
D/O LATE TOTA MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

4: BEGUM NESSA @ ABIDA BEGUM
D/O LATE TOTA MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

5: MONOWARA KHATUN
D/O LATE TOTA MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

6: ALEKJAN NESSA

D/O LATE TOTA MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

7: JAHURA KHATUN
D/O LATE TOTA MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSA

VERSUS

THANDU MIA AND 9 ORS.
S/O LATE IBRAHIM FAKIR, R/O VILL- GAGALMARI, MOUZA- JANIA, DIST-
BARPETA, ASSAM

2:MST. SUNDARJAN NESSA
D/O LATE IBRAHIM FAKIR
W/O LATE HANU MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

3:MST. AMENA KHATUN
D/O LATE IBRAHIM FAKIR
W/O LATE WAZED ALI
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

4:MD. MAYSHER ALI
S/O TANDU MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

5:DARBARI SHEIKH
S/O LATE BAHARUDDIN
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

6:ABDUL KUDDUS
S/O LATE BAHARUDDIN MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

7:FEDDUS ALI
S/O LATE BAHARUDDIN MIA
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

8:ABDUL MAZID
S/O LATE HAZI TAZIMUDDIN
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

9:LOKMAN ALI
S/O MANTAZ ALI
R/O VILL- GAGALMARI
MOUZA- JANIA
DIST- BARPETA
ASSAM

10:SAFIUR RAHMAN
S/O ABDUL BASED
R/O VILL- SAPRA
MOUZA- JANIA
DIST- BARPETA
ASSA

Advocate for the Petitioner : MR. N HAQUE, MR M HUSSAIN,MR. A K AZAD,MR. S R BARBHUIYA

Advocate for the Respondent : ,

**BEFORE
HONOURABLE MR. JUSTICE PARTHIVJYOTI SAIKIA**

ORDER

Date : 08.08.2025

Heard Mr. N Haque, the learned counsel appearing for the petitioners.

2. This application has been filed under Article 227 of the Constitution of India challenging the order dated 03.04.2025 passed by the learned Civil Judge (Junior Division) No. 1, Barpeta in Tittle suit No 27/2015.

3. The petitioners being the plaintiffs filed a suit praying for declaration of their right, title and interest over a plot of land measuring 4 Bigha 1 lecha of land. Later on the petitioners came to know that they are entitled to only 2 Bigha 3 katha 19.93 lechas of land. Therefore, they filed a petition under Order VI Rule 17 of the Code of Civil Procedure praying for amending their plaint. That petition was rejected by the Trial Court. Therefore, the plaintiff filed another petition praying for withdrawing the suit and to file a fresh suit. That petition was also rejected.

4. I have considered the submissions made by Mr. Haque in the light of the materials available in the record.

5. Under the given circumstances, no prejudice shall be caused to the defence if the suit filed by the petitioners is allowed to be withdrawn. Therefore, the impugned order dated 03.04.2025 passed by the learned Civil Judge (Junior Division) No. 1, Barpeta in Tittle suit No 27/2015 is bad in law and stands set aside.

6. The suit filed by the plaintiffs stands dismissed on withdrawal.

Liberty is granted to file a suit afresh.

With aforesaid direction, the revision petition is accordingly disposed of.

JUDGE

Comparing Assistant